# ADVANCE MEDICAL DIRECTIVE

Living Will & Healthcare Power of Attorney · Executed pursuant to Order dated 24/01/2023 of the Hon'ble Supreme Court of India in MA No. 1699/2019 in WP(C) No. 215/2005

## Section 1: Personal details

This advance medical directive (living will) and the designation of healthcare representative(s) is made by me:

| | |
|---|---|
| **Full name** | Rahul Sharma |
| **Gender** | Male |
| **Date of Birth / Age** | 20/05/1975 (Age: 50) |
| **Government ID** | 1. Document Name: Aadhaar<br>2. ID No.: 9876-5432-1098 |
| **Full permanent residential address** | 123 MG Road, Bengaluru, Karnataka |
| **Full current residential address** | 456 Indiranagar, Bengaluru, Karnataka |
| **Municipality / Panchayat / Local Body** | BBMP Bengaluru |

*If and when the time comes that I can no longer participate in decision-making regarding my own health and medical treatment, this directive should be treated as the final expression of my wishes.*

**Relevant Personal Values & Health Background:**

***Personal values and goals:*** *I value mental clarity and time with my family above prolonging pain.*

I request that all concerned (including my designated healthcare representative(s), my treating team, and the others involved) must treat my wishes in this document as the primary basis for any decision regarding my medical treatment, particularly decisions relating to life-sustaining treatment.

ADVANCE MEDICAL DIRECTIVE

## Section 2: Directions relating to life-sustaining treatment

In situations where my treating physician or medical team have determined that:

• There is no reasonable medical probability of recovery from a terminal condition, end-stage condition [1], or vegetative state [2], and

• Any further medical intervention or course of treatment would only serve the purpose of artificially prolonging the process of dying.

**I direct that any life-prolonging medical procedure/treatment be withheld or withdrawn, and the course of natural death be permitted, in accordance with the specific directives set forth below:**

| Medical Intervention / Treatment | Patient Preference & Explanation | Directive Status |
|---|---|---|
| **1. Cardio-pulmonary resuscitation (CPR)** | Directs that cardiopulmonary resuscitation (CPR) be withheld or withdrawn; permit natural death. | **WITHHOLD / WITHDRAW** |
| **2. Mechanical Ventilation (Artificial Life Support)** | Directs withholding or withdrawal of invasive mechanical ventilation / artificial life support. | **WITHHOLD / WITHDRAW** |
| **3. Dialysis (Renal Replacement Therapy)** | Directs withholding or withdrawal of renal dialysis in end-stage or terminal condition. | **WITHHOLD / WITHDRAW** |
| **4. Chemotherapy (Cancer Therapy)** | Directs withholding or cessation of chemotherapy aimed solely at prolonging active dying. | **WITHHOLD / WITHDRAW** |
| **5. Radiotherapy (Radiation Therapy)** | Directs withholding of radiation therapy unless required for palliative symptom control. | **WITHHOLD / WITHDRAW** |
| **6. Invasive Surgery (Major Operations)** | Directs withholding of invasive surgeries, unless strictly for comfort or pain alleviation. | **WITHHOLD / WITHDRAW** |
| **7. Artificial Hydration (IV / Tube Fluids)** | Directs withholding of invasive IV fluids/meds, excluding those needed for comfort/pain relief. | **WITHHOLD / WITHDRAW** |
| **8. Artificial Nutrition (Feeding Tubes)** | Directs withholding/withdrawal of artificial feeding tubes if only artificially prolonging dying. | **WITHHOLD / WITHDRAW** |

**Statutory & Clinical Definitions:**

[1] *'End-stage condition'* means an irreversible condition caused by injury, disease, or illness resulting in progressively severe and permanent deterioration, where, to a reasonable degree of medical probability, treatment would be ineffective.

[2] *'Vegetative state'* is one where a person is awake but shows no signs of awareness (persisting beyond clinical thresholds established by authoritative medical bodies).

**Comfort Care & Pain Alleviation Directive: Even when life-sustaining treatment is withheld or withdrawn, I explicitly direct the administration of medication and performance of medical procedures for providing me with comfort care or to alleviate suffering in the form of pain, distress, or mental confusion (or to facilitate organ or body donation).**

*Specific pain management directives: Administer maximum palliative analgesia.*

ADVANCE MEDICAL DIRECTIVE

## Section 3 (Optional): Wishes or desires during end-of-life care

Below are my specific guidelines regarding personal preferences during palliative and end-of-life care:

| | |
|---|---|
| **Preferred Place of Care** | Preferred setting: **Home** (Preferred facility / institution: Manipal Hospital) |
| **Preferred Treating Physician** | Dr. Ramesh Rao (Chief of Palliative Medicine), Manipal Hospital (Subject to availability & feasibility) |
| **Special Focus / Care Priority** | Spiritual peace and pain relief. |
| **Gender Identity Instructions** | Address with male pronouns (He/Him). |
| **Relationship / Partner Disclosures** | Spouse is primary next-of-kin. |
| **Additional Wishes** | Play soft instrumental music. |

## Section 4: Authorisation of Designated Healthcare Representative(s) (DHR)

In order to ensure that my wishes here are the primary basis for taking any treatment decisions, and to make decisions on my behalf for my medical treatment as may be needed from time to time, I have nominated **One (1)** designated healthcare representative(s) (DHR) in the stated order of preference below.

I have had extensive discussions with those named regarding my wishes, their responsibilities, and the situations which they may be expected to take decisions in. They have expressed that they are willing to be nominated as my designated healthcare representative(s).

**I authorise my DHR(s) to exercise the following powers:**
• They can obtain medical information from the treating team regarding my treatment, my health records, and communications with the treating team;
• They can take decisions and act on my behalf regarding my wishes in this document as necessary, including providing consent, refusing, or withdrawing consent to any care, treatment, service, or procedure, guided primarily by my wishes as expressed in this directive.
*The decisions taken by my DHRs should be respected regardless of any contrary views that any other person may hold.*

### I authorise the following person as my primary DHR:

| | |
|---|---|
| **Full Name** | Priya Sharma |
| **Relationship with Executor** | Spouse |
| **Date of Birth** | 15/08/1978 |
| **Government ID** | 1. Document Name: Passport \| 2. ID No.: K1234567 |
| **Mobile Number(s)** | 1. Primary: +919876543211 \| 2. Any other: +919876543212 |
| **Email ID(s)** | 1. Primary: priya@example.com \| 2. Any other: priya.work@example.com |
| **Permanent Residential Address** | 123 MG Road, Bengaluru |
| **Residential Address on Date of Signing** | 123 MG Road, Bengaluru |

ADVANCE MEDICAL DIRECTIVE

### Alternate Designated Healthcare Representative(s)

*If my primary DHR is not available, or unable or unwilling to take a decision, then I authorise the following person(s) to act as my designated healthcare representative(s) in the stated order of preference:*

***No secondary or alternate designated healthcare representative has been appointed by the executor at this time.*** *Should the primary designated representative be unavailable, unwilling, or unable to act, clinical decisions shall be governed by the instructions set forth in this directive and applicable medical protocols.*

## Section 5 (Optional): Directions to be followed upon my death

| | |
|---|---|
| **Organ Donation** | **YES** — Registered donor / desires donation under the Transplantation of Human Organs and Tissues Act, 1994 (Form 7). |
| **Body / Cadaver Donation** | **NO** — Directs that body not be donated for medical research. |
| **Last Rites / Funeral** | Traditional Hindu rites, cremation. |

## Declaration & Legal Framework

I declare that at the time of signing and executing this document:
• This document has been drafted as per my directions, and its contents have been read out and explained to me;
• I have the mental capacity and competence to understand the meaning and implications of everything mentioned in this document;
• I have given careful thought and consideration to everything mentioned in this document;
• I have willingly and voluntarily articulated and consented to everything mentioned in this document, without any coercion, duress, or undue influence from any person or entity.

**Supreme Court Alignment & Custody Distribution:**
This directive is executed in accordance with the order dated January 24, 2023, of the Hon'ble Supreme Court of India in MA No. 1699/ 2019 in WP (C) No. 215/ 2005 (SC Order). Further, copies of this executed directive shall be forwarded to and retained by:
• Designated healthcare representative(s) (DHR) named in this directive (Confirmed);
• Treating physician / chosen healthcare facility (Confirmed);
• The Competent Officer / Custodian of the local government body (Panchayat, Municipality, or Municipal Corporation) (Confirmed).

**Validity, Modification & Revocation**
I declare that this directive, and my authorisations for DHRs, shall be valid and remain in force throughout my lifetime, unless I modify or revoke them. I reserve the right at any time to execute a revised version of this document or revoke it in its entirety. I shall ensure copies of any revised directive or revocation are shared with the DHRs, treating physicians, and municipal custodians named above.

*[Drafting & Review Note: This Advance Medical Directive has been generated using the model template formulated by the Vidhi Centre for Legal Policy pursuant to the Hon'ble Supreme Court of India's guidelines. It is presented for review by the project guide or a qualified legal professional prior to formal execution and notarisation. The system assists in document drafting and does not constitute statutory legal representation.]*

ADVANCE MEDICAL DIRECTIVE

## Execution, Witness Attestations & Notarisation

**Notice to Signatories:** Pre-filled details reflect patient identity and witness records captured in the Advance Care Planning System. Official signatures, thumb impressions, dates, places, and notarial stamps must be affixed in physical presence as required by law.

### 1. Signature of the Executor (Declarant / Patient):

| | |
|---|---|
| **Full Name of Executor** | **Rahul Sharma** |
| **Signature or Thumb Impression** (Sign in wet ink in presence of witnesses & notary) | _____ [Full Signature / Thumb Impression] |
| **Date of Signing** | Date: _____ / _____ / 20_____ |
| **Place of Signing** | Bengaluru |

### 2. Attestation & Signatures of Witnesses:

*We, as independent witnesses, hereby record our satisfaction that this Advance Medical Directive has been executed voluntarily by the Declarant in our presence, without any coercion, duress, inducement, or compulsion.*

| | | |
|---|---|---|
| **Witness #1 Particulars** | Name: **Dr. Ananya Sen**<br>Address: 45 Medical Enclave, Bengaluru<br>Govt ID: Aadhaar 1111-2222-3333<br>Mobile: +919876543299 \| Email: ananya@hospital.in | **Witness #1 Signature:**<br>_____<br>Date: ____/____/20____<br>Place: _____ |
| **Witness #2 Particulars** | Name: **Vikram Patel**<br>Address: 88 High Court Road, Bengaluru<br>Govt ID: Voter ID VTR998877<br>Mobile: +919876543298 \| Email: vikram@advocates.in | **Witness #2 Signature:**<br>_____<br>Date: ____/____/20____<br>Place: _____ |

### 3. Notarisation / Judicial Attestation:

This directive and authorisation of designated healthcare representative(s) has been signed in the presence of the undersigned by **Rahul Sharma** (Declarant / Executor), and I record my satisfaction that the document has been executed voluntarily and without any coercion, inducement, or compulsion.

| SIGNED BEFORE ME | OFFICIAL NOTARIAL STAMP & SEAL |
|---|---|
| _____<br>(Signature of Notary Public / Judicial Magistrate First Class)<br><br>Full Name of Notary: **Adv. Suresh Babu**<br>Registration / Enrolment No.: _____<br>Date: **24/10/2026**<br>Place: **Bengaluru** | _____<br>[Affix Official Stamp, Seal, and Notarial Register Serial Number here] |

ADVANCE MEDICAL DIRECTIVE